contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Los Angeles, California.

The lands affected by this order are described as follows:

The public lands in the following-described areas:

SAN BERNARDINO MERIDIAN

T. 16 S., R. 10 E.,
Secs. 25 and 26.
T. 16½ S., R. 10 E.,
Secs. 1 and 2.
T. 16 S., R. 11 E.,
Sec. 27, W½;
Secs. 28 to 34, inclusive;
Sec. 35, W½.
T. 16½ S., R. 11 E.,
Secs. 1 to 6, inclusive.
T. 17 S., R. 11 E.,
Secs. 1 to 6, inclusive.
T. 14, S., R. 12 E.,
Secs. 15, 17, 22, 27, 32, 33, and 34.
T. 15 S., R. 12 E.,
Secs. 3, 4, and 5.

The areas described, including both public and nonpublic lands, aggregate 22,694.99 acres.

The lands in T. 16 S., R. 10 E., Tps. 16½ and 17 S., R. 11 E., and Tps. 14 and 15 S., R. 12 E., are subject to the orders of the Secretary of the Interior of October 12 and 19, 1920, withdrawing certain lands for reclamation purposes.

The remaining public lands are desert in character, ranging from level to broken and rolling in topography, and having soil of sand and gravel.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

AUGUST 1, 1947.

[F. R. Doc. 47-7508; Filed, Aug. 11, 1947; 8:55 a. m.]

[Public Land Order 389]

NEW MEXICO

REVOKING PUBLIC LAND ORDER NO. 21 OF AUGUST 6, 1942, WITHDRAWING PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT AS A PRACTICE BOMBING RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 21 of August 6, 1942, as amended by Executive Order No. 9526 of February 28, 1945, withdrawing the hereinafter-described public lands for the use of the War Department as a practice bombing range is hereby revoked.

The jurisdiction over and use of such lands granted to the War Department by Public Land Order No. 21 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on October 3, 1947. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from October 3, 1947, to January 2, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from September 13, 1947, to October 3, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on October 3, 1947, shall be treated as simultaneously filed.

(c) *Date for nonpreference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on January 3, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from December 15, 1947, to January 3, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on January 3, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Las Cruces, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Las Cruces, New Mexico.

The lands affected by this order are described as follows:

NEW MEXICO PRINCIPAL MERIDIAN

T. 18 S., R. 23 E.,
Sec. 27, S½;
Sec. 34, N½.

The area described aggregates 640 acres.

Available information indicates that the above-described lands are traversed by several large draws and have a rolling to rough surface.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

AUGUST 1, 1947.

[F. R. Doc. 47-7509; Filed, Aug. 11, 1947; 8:55 a. m.]

[Public Land Order 390]

ALASKA

WITHDRAWING PUBLIC LAND FOR USE OF ALASKA ROAD COMMISSION AS ADMINISTRATIVE SITE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following-described public land in Alaska is hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws, but not the mineral-leasing laws, and reserved for the use of the Alaska Road Commission as an administrative site:

SEWARD MERIDIAN

T. 5 N., R. 10 W.,
Sec. 32, lot 2.

The area described contains 15.62 acres.

Executive Order No. 8979 of December 16, 1941, establishing the Kenai National Moose Range, is hereby revoked so far as it affects the above-described land.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

AUGUST 4, 1947.

[F. R. Doc. 47-7510; Filed, Aug. 11, 1947; 8:55 a. m.]

[Public Land Order 391]

NEVADA

REVOKING PUBLIC LAND ORDER NO. 266, OF MARCH 16, 1945, WITHDRAWING PUBLIC LANDS FOR USE OF THE NAVY DEPARTMENT AS TARGET RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 266 of March 16, 1945, withdrawing the hereinafter-described public lands for the use of the Navy Department as a target range, is hereby revoked.

The jurisdiction over and use of such lands granted to the Navy Department by Public Land Order No. 266 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on October 6, 1947. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from October 6, 1947, to January 5, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. sec. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. secs. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from September 17, 1947, to October 6, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on October 6, 1947, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on January 6, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference-right filings.* Applications by the general public may be presented during the 20-day period from December 18, 1947, to January 6, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on January 6, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Carson City, Nevada, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that title, to the extent that such regulation are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office, Carson City, Nevada.

The lands affected by this order are described as follows:

MOUNT DIABLO MERIDIAN

T. 16 N., R. 33 E.,
Sec. 2, SW¼ and W½SE¼;
Sec. 3, S½;
Sec. 4, S½SW¼ and SE¼;
Sec. 5, E½SW¼SE¼ and SE¼SE¼;
Sec. 8, NE¼, SE¼NW¼, E½SW¼, and SE¼;
Secs. 9 and 10;
Sec. 11, W½NW¼NE¼, S½NE¼, W½, and SE¼;
Sec. 14, NW¼NE¼, NW¼, and W½SW¼;
Secs. 15, 16, and 17;
Sec. 20, N½N½;
Sec. 21, N½N½;
Sec. 22, N½N½;
Sec. 23, NW¼NW¼.

The areas described aggregate 5,880 acres.

The lands are fairly level desert lands located in Fairview Valley, Churchill County, Nevada.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

AUGUST 4, 1947.

[F. R. Doc. 47-7512; Filed, Aug. 11, 1947; 8:55 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[No. 29670]

PART 95—CAR SERVICE

INCREASED PER DIEM CHARGE ON FREIGHT CARS

Upon investigation, found that effective October 1, 1947, and for a period of six months thereafter, a per diem charge of $2.00 to be paid to the owner for the use of each car (except tank and refrigerator cars), will promote greater efficiency in the use and increase the supply of cars, and that such increased charge will be reasonable.

Report of the Commission. This proceeding, instituted by an order dated December 18, 1946, is an investigation, upon our own motion, to determine whether the establishment of a rate of $2 per day, or other increased rate, to be paid to the owner for the use of each car, during periods of car shortages (except tank and refrigerator cars) by any common carrier would promote greater efficiency in the use and increase the supply of cars; with the view of making findings and the entry of an order or orders, under the authority of the Interstate Commerce Act, particularly paragraph (10), (11), (13), and (14) of section 1 thereof, requiring the establishment of an increased basis and rate of compensation for car-hire during periods of car shortages if it be found that it will promote greater efficiency in the use and increase the supply of cars. All common carriers by railroad subject to the act and all other persons owning or leasing freight cars (except tank and refrigerator cars) to any such carrier were made respondents, and a copy of the order of investigation was served upon the Association of American Railroads, Car Service Division, hereinafter referred to as the Association, as well as upon the carriers. A proposed report was issued and exceptions were orally argued. Our findings differ from those proposed by the examiner.

Evidence was presented by the Director of our Bureau of Service and six service agents; by the Deputy Director of the Office of Defense Transportation; by the Chairman and Vice Chairman of the Car Service Division, in behalf of the Association and rail carrier members of the Association, and by 4 employees of the Association; by the Vice Presidents in charge of Operation, The Pennsylvania Railroad Company, hereinafter called the Pennsylvania, and Union Pacific Railroad Company; by the General Merchandise Manager, The New York, New Haven and Hartford Railroad Company, hereinafter called the New Haven; by the General Superintendent of Transportation, Seaboard Air Line Railway Company; by the President of the American Short Line Railroad Association; and by the Chief of the Transportation Facilities Division, Marketing Facilities Branch, Production and Marketing Administration, United States Department of Agriculture.

Counsel for the Association moved to dismiss the proceeding for lack of jurisdiction upon the ground that the Interstate Commerce Act does not authorize the Commission to prescribe a per diem charge which contains any element of penalty. Section 1 (14) (a) of the Interstate Commerce Act reads as follows:

> The Commission may, after hearing, on a complaint or upon its own initiative without complaint, establish reasonable rules, regulations, and practices with respect to car service by common carriers by railroad subject to this part, including the compensation to be paid and other terms of any contract, agreement, or arrangement for the use of any locomotive, car, or other vehicle not owned by the carrier using it (and whether or not owned by another carrier), and the penalties or other sanctions for nonobservance of such rules, regulations, or practices.

The Association emphasizes the word "compensation" and argues that the Commission's authority is limited to the terms of compensation for the use of cars and does not embrace a per diem charge which has any element of penality. The compensation to be paid is merely incidental to and a part of the reasonble